

Case called out.

Learned counsel for DHR present.

IA filed by DHR under Sec.39, 40 read with Sec.151 of the CPC.

Heard counsel for the DHR and perused the records. The DHR intends to transfer the petition to the jurisdictional court.

As per Sec.39 of CPC if such person has no property within the local limits of the jurisdiction of the court which pass the decree and has property within the local limits of the jurisdiction of such other court and if the person against whom the decree is passed resides within the local limits of the jurisdiction such other court, then the court which passes the decree may send it for execution to such other court and transfer the decree to such other court.

On perusal of the execution petition it reveals that the JDR No.1 and 2 are residing at Nandanam Extension, Chennai, Tamil Nadu-600035. Hence, by applying the above provision the decree can be transferred to the court as sought in the application. With this observation, I proceed to pass the following:

ORDER

IA.No. filed by DHR under Sec.39 of CPC is hereby allowed.

Office is directed to transfer the decree to the Hon'ble City Civil Court, Chennai, City Court House, No.137, PQ +34, High Court Road, Parrys, George Town, Chennai, Tamil Nadu - 600104.

Accordingly instant Execution petition is closed and disposed otherwise.

(24.03.2025)

XXXIX ACC & SJ, B'Luru